

24STCV10288 24STCV10288

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MOTION TO COMPEL ARBITRATION

The Court tenders the following

tentative decision in the matter James Moultrie v. Nazareth Haysbert, Los Angeles County Superior Court case number 24STCV10288, set for hearing on July 20, 2026. Nazareth Haysbert (Defendant) moves for an order compelling James Moultrie (Plaintiff) to submit to binding arbitration and staying these proceedings in the interim. Plaintiff opposes the motion. The motion is granted.

A. Legal Standard

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement." (Code Civ. Proc. § 1281.2, subds. (a), (b).)

A proceeding to compel arbitration is

in essence a suit in equity to compel specific performance of a contract. (Freeman v. State Farm Mutual Auto Insurance Co. (1975) 14 Cal.3d 473, 479.) Such enforcement may be sought by a party to the arbitration agreement. (Code Civ. Proc., § 1280, subd. (e)(1).) A motion to compel arbitration requires the facts to be proven by affidavit or declaration and documentary evidence with oral testimony taken only in the court's discretion. (Code Civ. Proc., §1290.2; Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413–414.) The motion must set forth the provisions of the written

agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218.)

Once the moving party alleges that an arbitration agreement exists, the burden shifts to the responding party to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (See *Condee*, supra, 88 Cal.App.4th at p. 219.) However, if the existence of the agreement is challenged, “[movant] bears the burden of proving [the arbitration agreement’s] existence by a preponderance of the evidence.” (Rosenthal, supra, p. 413; see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058–1060.)

B. Discussion

Defendant moves to compel Plaintiff to submit to binding arbitration pursuant to a partnership agreement between the parties. While the agreement contains an arbitration clause and Plaintiff does not contest that he signed the agreement, he maintains that it does not control because the agreement expired. Importantly, unless a party challenges the arbitration clause itself, “the issue of the contract’s validity is considered by the arbitrator in the first instance.” (*Buckeye Check Cashing, Inc. v. Cardegna* (2006) 546 U.S. 440, 446; see also *Sandquist v. Lebo Automotive, Inc.* (2016) 1 Cal.5th 233, 252 (*Sandquist*).) Thus, the Court must first examine the agreement as a whole and determine whether Plaintiff challenges the applicability of the entire agreement or the arbitration clause specifically.

The parties entered the partnership agreement (Agreement) on January 28, 2015. (Haysbert Decl., Ex. A.) Section 2 of the Agreement states that it shall begin on November 7, 2014, and continue “until automatically terminating on December 31, 2016.” (*Ibid.*) It further states that the terms and conditions of the Agreement “shall be continuously renewable for another year up to fifteen (15) days before the termination date with the unanimous consent of all partners.” (*Ibid.*) An arbitration clause is contained in section 26, stating that “In the event a dispute arises out of or in connection with this Agreement . . . If mediation is not successful in resolving the entire dispute or is unavailable, any outstanding issues will be submitted to final and binding arbitration.”

(Ibid.)

Plaintiff's

claims in the present action arise out of the terms of the Agreement and whether it expired. (FAC ¶¶ 8–10.) The parties were unable to resolve the dispute over the Agreement's potential expiration via friendly consultation or mediation as instructed under the Agreement. (Id. ¶¶ 34–35, Ex. 1.)

Thus, the arbitration provision applies to Plaintiff's claims. Plaintiff argues that the Agreement expired and that the arbitration provision thus carries no legal effect — that there is no enforceable agreement to arbitrate. In essence, Plaintiff challenges the enforceability of the entire Agreement. But, as discussed in *Sandquist*, “even a challenge to the enforceability of the entire contract in which an arbitration clause appears is presumptively for the arbitrator, not the court.” (*Sandquist*, supra, 1 Cal.5th at p. 252.) Because the parties agreed to settle disputes under the Agreement via arbitration, it is up to the arbitrator to determine whether the agreement expired or was renewed. Thus, Defendant has met its burden of demonstrating the existence of a valid agreement to arbitrate.

Plaintiff

further argues that his claims are not subject to arbitration because they involve conduct after the Agreement's expiration. But once again, this presupposes that the Agreement did indeed expire at the end of 2016. Whether or not the Agreement expired is a question for the arbitrator to resolve. Thus, Plaintiff has not presented a valid argument as to why the arbitration clause should not be enforced. Accordingly, Defendant's motion to compel arbitration is granted. These proceedings are stayed pending the outcome of arbitration pursuant to section 1281.4.

C. Conclusion

Defendant's motion to compel arbitration and stay these proceedings is granted.